

फार्म नं. 1

प्रथम सूचना प्रतिवेदन (धारा 154 द.प्रक्रिया संहिता के अन्तर्गत)

FIRST INFORMATION REPORT (Under Sec.173 B.N.S.S.) S.P.E.C.II

Book No.

Serial No.

1. District PS: Year FIR No. Date
Patna CBI/ACB/Patna 2024 RC0232024A0014 26.10.2024
2. (1) Act PC Act, 1988 Sections 7 & 8
 (As amended in 2018) Act, 1988
 (2) Act BNS, 2023 Sections 61 (2)
 (3) Act Sections
 (4) Others Acts & Sections -
3. (a) Suspected Offence **Offence relating to public servant being bribed, Criminal Conspiracy**
 (b) Day Date Time
October, 2024
 (c) Information received at PS - Date
26.10.2024
- Entry No. Date Time
05/2024 26.10.2024 19.00 hrs.
4. Type of information Written / Oral
Source Information Oral
5. Place of occurrence **Patna**
 (a) Direction & Distance from PS -. -

Beat No.

(b) Address **Ashiyana Digha Road, Patna**

(c) In case, outside the limit of this Police Station, then

Name of PS NA District

6. Complainant / Informant. N/A

(a) Name - N/A

(b) Father's/Husband's Name -

(c) Date of Birth - N.A. (d) Nationality - N/A

(e) Passport No. - Date of Issue - Place of issue -

(f) Profession - N/A

(g) Address - N/A

7. Details of known/suspected/unknown accused with full particulars
(Attached separate sheet, if necessary)

1. Shri Anurag Gaurav, Dy.FA& CAO [Construction], ECR, Mahendru Ghat, Patna [IRAS, 2010] presently residing at Flat No.402, 4th Floor, Shivraj Enclave Apartment, Ashiyana, Digha Road, Patna, and permanent resident of Tangratoli, Old Suta Factory Campus, Pisca More, Hehal, Ranchi, Jharkhand.

2. Shri Vikash Kumar, an official of ECR posted at Mahendru Ghat, Patna.

3. Shri Abhishek Kumar Singh, Director of M/s.Anand Raj Infratech Pvt. Ltd., having registered office at Co- Shri Devanand Singh Peer Bharauna, Faridpur More, Fatua, Patna-801305, having Laboratory at K-7 P.C.Colony Kankarbagh, Patna, permanent resident of House no F-159, P.C.Colony Lohiya Nagar, Kankarbagh, Sampat Chak, Patna, Bihar-800020.

4. And unknown others.

8. Reasons for delay in reporting by the complainant/informant.

N/A

9. Particulars of properties Stolen (Attach separate sheet, if necessary)

N/A

10. Total value of property stolen

N/A

11. Inquest Report/U.D. Case No., if any,

N/A

12. First information contents (Attach separate sheet, if required)

Information received from reliable source reveals that the following public servants of East Central Railway [ECR], Patna, Bihar have entered into a criminal conspiracy with a pre-determined intention of showing undue favour to the contractor, viz. M/s. Anand Raj Infratech Pvt. Ltd., Patna in facilitating the acceptance of tender submitted alongwith issuance of Letter of Acceptance [LOA] in favour of the said contractor in lieu of obtaining bribe: -

(1) Shri Anurag Gaurav, Dy. FA & CAO [Construction], ECR, Mahendru Ghat, Patna [IRAS, 2010] presently residing at Flat No. 402, 4th Floor, Shivraj Enclave Apartment, Ashiyana, Digha Road, Patna, and permanent resident of Tangratoli, Old Suta Factory Campus, Piska More, Hehal, Ranchi, Jharkhand. (2) Shri Vikash Kumar, an official of ECR posted at Mahendru Ghat, Patna. (3) Shri Abhishek Kumar Singh, Director of M/s. Anand Raj Infratech Pvt. Ltd., having registered office at Co- Shri Devanand Singh Peer Bharauna, Faridpur More, Fatua, Patna-801305, having Laboratory at K-7 P.C. Colony Kankarbagh, Patna, permanent resident of House no F-159, P.C. Colony Lohiya Nagar, Kankarbagh, Sampat Chak, Patna, Bihar-800020. and unknown others.

2. Information reveals that M/s Anand Raj Infratech Pvt. Ltd. Patna is presently working in association with one M/s. Chaitanya Projects Consultancy Ltd, Delhi, a consultancy firm engaged in survey, designing & construction, who have

participated in the tender floated by East Central Railways [ECR], Hajipur, Patna and have been selected as Qualified Bidder, for award of contract worth Rs. 15 Crore [Approx.]. It has been learnt that one Shri Abhishek Kumar Singh, Director of M/s Anand Raj Infratech Pvt. Ltd, Patna is pursuing for acceptance of the tender submitted by him along with issuance of Letter of Acceptance [LOA] in their favour to be issued by ECR, Patna.

3. Information further reveals that on 08.10.2024 Shri Anurag Gaurav, Dy.FA& CAO, ECR, Patna instructed Shri Abhishek Kumar Singh to meet him personally on 09.10.2024 and assured that the terms and conditions of the tender submitted by Shri Abhishek Kumar Singh is in the process of acceptance by the FA & CAO, ECR, Patna, following which LOA would be issued in their favour. Shri Anurag Gaurav asked Shri Abhishek Kumar Singh to come with due arrangement [of bribe].

4. Information also reveals that accordingly, on 09.10.2024 Shri Abhishek Kumar Singh met Shri Anurag Gaurav in his office at Patna. Thereafter, on the same day viz. 09.10.2024 Shri Anurag Gaurav asked one Shri Vikash Kumar, an official of ECR, Patna to take necessary action for acceptance of tender bid and issuance of LOA in favour of the party, otherwise, the said party [i.e. Abhishek Kumar Singh] would not meet them to fulfill his commitment towards them. Shri Anurag Gaurav further conveyed to Shri Vikash Kumar that he would be discussing with his superior officer [FA & CAO] for acceptance of the tender and issuance of LOA in favour of the said contractor.

5. Information discloses that on the same day i.e. 09.10.2024 Shri Anurag Gaurav informed Shri Vikash Kumar that the tender submitted by the party has been accepted and LOA has been issued to the company represented by Shri Abhishek Kumar Singh and directed Shri Vikash Kumar to convey to said Shri Abhishek Kumar Singh to meet him [i.e. Shri Anurag Gaurav] on 10.10.2024. Shri Anurag Gaurav also contacted said Shri Abhishek Kumar Singh and informed him about the acceptance and issuance of LOA in favour of their company and further directed Shri Abhishek Kumar Singh to meet him on 10.10.2024 at Patna for fulfilling his

commitment [with regard to payment of bribe]. Shri Abhishek Kumar Singh informed Shri Anurag Gaurav that he would be proceeding to Delhi. However, he would be deputing his official for fulfilling his commitment.

6. Information further discloses that on 10.10.2024, Shri Anurag Gaurav instructed Shri Vikash Kumar to contact Shri Abhishek Kumar Singh since he was not attending to the calls made by Shri Anurag Gaurav. Subsequently, on the same day i.e. on 10.10.2024 Shri Abhishek Kumar Singh informed Shri Anurag Gaurav that he could not fulfill his commitment owing to financial constraints, as some of his bills were pending of payment with East Coast Railway [ECoR], Bhubaneswar. Shri Anurag Gaurav expressed his displeasure for not sticking to the timeline for fulfilling the commitment made to him, despite the fact that the work [Acceptance of tender and issuance of LOA] has been done by them, without any delay. Shri Abhishek Kumar Singh assured to fulfill his commitment to which Shri Anurag Gaurav insisted for the same to be done by the evening of 11.10.2024. Further, on the same day, i.e. 10.10.2024 Shri Anurag Gaurav directed Shri Vikash Kumar, official of ECR, Patna to exert pressure on Shri Abhishek Kumar Singh, for fulfilling his commitment to which Shri Vikash Kumar assured to act accordingly.

7. Information reveals that on 14.10.2024, Shri Anurag Gaurav enquired from Shri Abhishek Kumar Singh regarding delay in fulfilling the commitment [i.e. payment of bribe]. Shri Abhishek Kumar Singh assured that he would be fulfilling his commitment as soon as there was availability of funds with him.

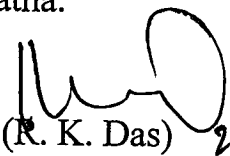
8. Information further reveals that on 23.10.2024, Shri Anurag Gaurav, Dy FA & CAO, ECR, Patna further reminded Shri Abhishek Kumar Singh to meet him by Friday i.e. 25.10.2024.

9. Information discloses that on 26.10.2024 Shri Abhishek Kumar Singh requested Shri Vikash Kumar, an official of ECR, Patna to convey to Shri Anurag Gaurav, Dy FA & CAO, ECR, Patna that he was now ready to meet Shri Anurag Gaurav for fulfilling his commitment. Shri Vikas Kumar reminded him regarding fulfilling the commitment made by said Shri Abhishek Kumar Singh in respect of the bribe share of Shri Vikas Kumar. Shri Abhishek Kumar Singh assured Shri

Vikas Kumar that he would be doing so subsequently. Accordingly, Shri Vikash Kumar conveyed the same to Shri Anurag Gaurav who informed Shri Vikash Kumar that he would be instructing Shri Abhishek Kumar Singh, regarding the same.

10. Information exists that Shri Abhishek Kumar Singh is likely to meet Shri Anurag Gaurav, Dy FA & CAO, ECR, Patna shortly, for delivery of such bribe amount to Shri Abhishek Kumar Singh.

Above information reveals information of cognizable offence u/s 7 & 8 of P.C. Act 1988 (As amended in 2018) and section 61(2) of BNS 2023. Hence, a regular case is registered against above mentioned public servants and private persons and unknown others under aforesaid sections of laws and investigation is entrusted to Sh. Amit Kumar, Dy. Supdt of Police, CBI, ACB, Patna.


(R. K. Das) 26/10/24
Supdt. of Police
CBI/ACB/Patna

Endt. No. 3890 /03/RC0232024A0014

Date 26.10.2024

Copy forwarded to the Special Judge-I, CBI, Patna for information and necessary action.

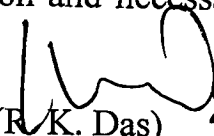

(R. K. Das) 26/10/24
Supdt. of Police
CBI/ACB/Patna

Endt. No. _____/03/RC0232024A0014

Date

Copy to :-

1. The CVO, CVC, Satrakta Bhawan, New Delhi for information.
2. The SDGM (Vig.), ECR, Hajipur for information.
3. The CVO, HQ, Rail Bhawan, Railway Board, New Delhi
4. Head of Zone, CBI, Ranchi Zone, Ranchi for information.
5. Shri Amit Kumar, Dy. SP, CBI, ACB Patna for information and necessary action and report within the stipulated period.


(R. K. Das) 26/10/24
Supdt. of Police
CBI/ACB/Patna

13. Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item No.2.

(1) Registered the case and took up the investigation or

Yes

(2)	Directed (Name of IO)	Rank	No.	Took up for investigation
	Shri Amit Kumar	Dy. Supdt. of Police		Yes
		CBI, ACB, Patna		

(3) Refused investigation due to _____ or

(4) Transferred to PS _____ District _____ on point of jurisdiction

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

पढ कर सुनाया व सही स्वीकृत होना पाया
R.O.A.C.

14. अभियागी/सूचनाकर्ता के हस्ताक्षर
Signature/Thumb Impression
of the complainant/informant

 26/10/24
थाना अधिकारी के हस्ताक्षर
Signature of Officer in-charge
Police Station

Name **(R. K. Das)**
Rank **(Supdt. of Police)**

15. Date and time of dispatch to the Court

 26/10/24
(प्रमारी अधिकारी के हस्ताक्षर तारीख सहित)
Signature of recording Officer with date
(R. K. Das)
(Supdt. of Police)

Attachment to item 7 of First Information Report

S.No.	(Sex)	Date/Year of Birth	(Built)	(Height) (in cms)	(Complexion)	(Identification Mark/s)
1	2	3	4	5	6	7

(Deformities/ peculiarities)	(Teeth)	(Hair)	(Eye)	(Habits)	(Dress Habit/s)
8	9	10	11	12	13

(Language / Dialect)	(Burn Mark)	(Leucoderma)	(Mole)	Place of	
				(Scar)	(Tattoo)
14	15	16	17	18	19

These fields will be entered only if complainant/informant gives any one or more particulars about the suspect/accused.